

USNCC CONSORTIUM AGREEMENT

The Department of the Navy formally established the United States Naval Community College (USNCC) in 2020 and in December 2021, with the signing of the National Defense Authorization Act (NDAA), the USNCC received formal authority with conditional degree-granting authority (dependent on achieving accreditation) from Congress. The USNCC seeks to form an educational association via bilateral agreements between the USNCC and select private and public nonprofit higher education institutions that offer accredited undergraduate education programs. The USNCC increases educational opportunities for enlisted Sailors, Marines, and Coast Guard personnel by providing curriculum designed to meet the needs of the naval services asynchronously, online, through a consortium of schools. Operating through a consortium model enables the USNCC to provide operationally relevant education for the maritime forces that is readily accessible, scalable, and fully transferable to four-year academic institutions of higher education.

I. Purpose.

The purpose of this bilateral Consortium Agreement (hereafter “Consortium Agreement” or “Agreement”) between the partner school, XXXX (hereafter “Partner Institution”), and the United States Naval Community College (hereafter “USNCC”) is to establish an operational model to provide quality education and activities by the most efficient and economically responsible means. The Partner Institution will provide additional general education and concentration-related courses as relates to the agreed upon Consortium Program outlined in this Agreement. This Consortium Agreement will formalize the relation among signatories in two phases:

- A. Prior to achieving accreditation (Pre-Candidacy Status), the USNCC plans (via this Agreement), to partner with institutions that will be the primary degree-grantors for associate degrees and Professional Certificates outlined in the attached program plans. The Partner Institution (as outlined in this Agreement) will honor USNCC courses via an articulation agreement. The articulation agreement includes, but is not limited to, courses taught at USNCC and transcript credit for prior learning (American Council of Education (ACE)

- recommendations) as agreed upon by both parties. The Partner Institution will support the USNCC by providing academic and administrative services as outlined in this Agreement.
- B. Upon achieving accreditation (Post-Candidacy Status), the USNCC will become the primary associate degree grantor for new USNCC Consortium Students and will provide select existing USNCC Consortium Students the opportunity to transition to a USNCC degree program. The Partner Institution shall continue to offer degrees and Professional Certificates to existing USNCC Consortium Students who do not transfer to USNCC degree programs and may continue to grant Professional Certificates to USNCC Consortium Students who subsequently enroll in the designated concentration areas. Post-Candidacy, the USNCC will honor the Partner Institution's courses via an articulation agreement.

II. **Definitions.**

- A. **Articulation Agreement:** A documented pathway for transfer credit between the USNCC and Partner Institution.
- B. **Consortium Program:** A degree or Professional Certificate program that is jointly agreed upon between the USNCC and Partner Institution with the intent of sharing resources and educating students.
- C. **Consortium Program Plan:** A detailed outline of the program, the specific courses required for degree and/or Professional Certificate completion and bachelor degree pathway(s).
- D. **Effective Date:** The date when both parties to this agreement begin their obligations to perform under the agreement. For the purposes of this Consortium Agreement, that date will be the date the Task Order is awarded.
- E. **Evaluated Education Plan:** An individualized official academic document provided by the educational institution that (1) articulates all degree requirements for degree completion or in the case of a non-degree program, all educational requirements for completion of the program; (2) identifies all courses required for graduation in the individual's intended academic discipline and level of postsecondary study; and (3) includes an evaluation of all successfully completed coursework, and evaluated credit for military training and experience, and other credit sources applied to the institutional degree requirements. The Evaluated Education Plan is also known, for example, as a degree audit, military degree plan, academic advisory report (AAR).
- F. **Home Institution:** The institution that is the primary degree-grantor.

- G. **Host Institution:** The institution that provides education to students that partially fulfills degree program requirements, but is not the primary degree-grantor.
- H. **JST:** The Joint Services Transcript (JST) is an official education transcript tool for documenting the recommended college credits for professional military education, training courses, and occupational experiences of Service Members across the services. The JST incorporates data from documents such as the Army/ACE Registry Transcript System, the Sailor/Marine ACE Registry Transcript System, the Community College of the Air Force transcript, and the Coast Guard Institute transcript.
- I. **Naval Studies Certificate:** USNCC taught certificate program comprised of five courses, totaling 15 semester credit hours. These courses are: Naval Ethics and Leadership, Modern Naval History, Naval Force Design and Concepts, Civil/Military Organization and Policies, and Introduction to the Geopolitical Environment (capstone).
- J. **Partner Institution:** Partner University or College that is participating in the Consortium Agreement.
- K. **Post-Candidacy Status:** The time period after USNCC attains Candidate for Accreditation Status by the Middle States Commission on Higher Education and has statutory degree granting authority.
- L. **Pre-Candidacy Status:** The time period prior to the USNCC gaining candidacy for accreditation or degree-granting authority. USNCC received degree-granting authority via statutory language in the Fiscal Year 2022 National Defense Authorization Act and is seeking accreditation from the Middle States Commission on Higher Education.
- M. **Professional Certificate(s):** Certificate program(s) taught by Partner Institution, which is fully embedded in the Consortium Program or offered standalone.
- N. **Residency:** The number of credits a student must complete through an institution in order to graduate.
- O. **Signing Date:** The date when this agreement is signed.
- P. **Teaching Institution:** The institution that is teaching a course to the student at that time.
- Q. **Teach Out Agreement:** The written plan and subsequent process by which the institution provides institutional and academic support services to students enrolled in an educational program that has been discontinued. The teach-out process often extends well beyond the termination date (the date on which the site or program is closed permanently to admissions) to allow time for enrolled students to complete their program in a reasonable amount of time. The plan must provide for the equitable treatment of students in an institution.

- R. Transitioning Consortium Student (TCS) Plan: The written plan of course alternatives (plan) identified by PI as part of the Consortium to fulfill PI
- S. program requirements should the student no longer be eligible for enrollment at USNCC.
- T. **USNCC:** U.S. Naval Community College, which is initiating this Consortium Agreement.
- U. **USNCC Consortium Students:** Sailors, Marines, and Coast Guard personnel who have been accepted into USNCC and participate in a USNCC Consortium Program Plan.

III. Overview.

- A. The development of this bilateral Consortium Agreement between each party (USNCC and the Partner Institution) signifies that each has extensively reviewed the other educational institution and confirmed:
 - 1. The Partner Institution must (1) be an accredited institution, as recognized by an institutional accreditor recognized by the Department of Education; (2) offer at least one accredited associate degree and Professional Certificate; and (3) be authorized to educate online students from all 50 states.
 - 2. Each institution is currently in good standing with its regulatory bodies.
 - 3. Credits awarded by the institutions have been evaluated and determined to be eligible for transfer.
- B. This Consortium Agreement formally recognizes that as educational institutions, the Partner Institution and USNCC agree to collaboratively work to preserve integrity and, subject to accreditation and regulatory constraints, to further enhance the quality of their respective institution's academic offerings.
- C. This Consortium Agreement recognizes that each institution shall ensure that the design and delivery of its online courses reflect research-based effective instructional design practices in online asynchronous delivery.
- D. This Consortium Agreement further acknowledges that each institution has established and will maintain its own rigorous standards and expectations for all students enrolled in and working toward the completion of its courses, programs, Professional Certificate(s), and/or degrees.
- E. This Consortium Agreement reflects a commitment of both institutions to facilitate the transfer of credits into an associate degree program in alignment with the intended mission and stated goals of both institutions.
- F. This Consortium Agreement applies to agreed upon Consortium Programs outlined in the attached Consortium Program Plan(s).

IV. Pre-Candidacy Degree Offering.

- A. Both parties will develop a Consortium Program Plan for Pre-Candidacy status that shall become a part of Attachment(s) 1.
 - 1. The Consortium Program Plan will outline the program, course and credit requirements, and bachelor degree pathways for a jointly agreed-upon degree in each relevant concentration area, as well as a fully embedded or standalone Professional Certificate in that same concentration area that will be offered to USNCC Consortium Students.
 - 2. The Articulation Agreement will identify which Home Institution degree requirements are satisfied by which USNCC taught courses, or other accepted credit recommendation sources (ACE, College Level Examination Program (CLEP), etc.). This Pre-Candidacy Articulation Agreement will be known as Attachment(s) 1a.
 - 3. Both parties may request to review the Pre-Candidacy status Consortium Program Plan(s) or Articulation Agreement(s) at any time. Changes must be mutually agreed upon. At a minimum, the Consortium Program Plan(s) will be reviewed bi-annually. Any changes made to the Consortium Program Plan(s) will be updated and signed and the associated Attachment(s) 1 and 1a will be replaced.
- B. Unless otherwise indicated, Attachment(s) 1 and 1a will remain in effect during USNCC's Post-Candidacy status for those USNCC Consortium Students pursuing a degree or Professional Certificate from the Partner Institution.
- C. While USNCC is in Pre-Candidacy status, the Partner Institution will be the primary degree grantor (for both the associate degree and/or Professional Certificate).
- D. Regardless of candidacy status, the USNCC may offer and award a Naval Studies Certificate.

V. Post-Candidacy Degree Offering.

- A. Post-Candidacy, USNCC will have exclusive responsibility to determine its degree program(s), courses, and articulation of Partner Institution courses into the USNCC degree program. The USNCC can make unilateral changes to its program(s). When USNCC is in Post-Candidacy status, USNCC will be the primary degree grantor for the associate degree and Naval Studies Certificate for new students. Both the USNCC and the Partner Institution may offer an embedded or standalone Professional Certificate.
- B. USNCC and Partner Institution may form a mutually agreed upon Post-Candidacy Status Consortium Program to do the following:

1. Support the Partner Institution delivery of a Professional Certificate.
 2. Provide continuity of degree program delivery in the form of a Transitioning Consortium Student (TCS) Plan to students if they were to separate from the USNCC and desire to transfer directly to the Partner Institution.
 3. Document the articulation of Partner Institution courses into the USNCC to indicate which Partner Institution courses satisfy USNCC degree requirements.
 4. This additional Consortium Program Plan and Articulation Agreement shall become Attachment(s) 2 and 2a. to this agreement, respectively.
- C. When USNCC enters Post-Candidacy status, new students will enter the USNCC-led degree program. Existing USNCC Consortium Students will be given the opportunity to move to the USNCC degree program as desired and as appropriate. Certain existing USNCC Consortium Students may opt to continue in the Partner Institution-led (Pre-Candidacy) Consortium Program.

VI. Roles, Responsibilities, and Policies.

A. Roles and Responsibilities:

1. **Home Institution:** Home Institution will be the primary degree grantor and will do the following:
 - a. Provide degree advising, degree-audit, and degree award.
 - b. Be responsible for academic policies and requirements related to degree award.
 - c. Maintain appropriate institutional accreditation and programmatic/specialized accreditation.
 - d. Be responsible for Title IV (whereas, each institution does its own state and institutional aid, and needs to convey policies to the other partner for Title IV purposes).
 - e. Be responsible for program assessment.
2. **Home and Host Institutions:** Both the Home and Host Institutions will do the following:
 - a. Maintain accreditation (as appropriate).
 - b. Be responsible for assessment of its own courses/programs.
 - c. Adhere to its own educational standards.
 - d. Conduct course assessment.
 - e. Hire qualified faculty.
 - f. Provide appropriate academic and support services.
 - g. Exchange data as appropriate to support the administration and assessment of the Consortium Program.

- h. Develop and provide teach out agreements & plans as needed to ensure institutional and academic support services to students enrolled in an educational program that has been discontinued.

3. **Teaching Institution:** Teaching Institution has the following responsibilities:

- a. Provide instruction by qualified faculty.
- b. Provide high quality courses utilizing best practices in online delivery of courses.
- c. Provide instructional materials, access to learning management system, and other resources required to complete courses.
- d. Require students to adhere to all appropriate academic, code of conduct, and other policies at that school.
- e. Provide academic and support services (e.g., library, advisors, writing center, student support, etc.) consistent with that provided to other students enrolled at their institution (except where otherwise noted) when students are enrolled in classes.

4. **Partner Institution:** Partner Institution has the following responsibilities:

- a. Disclose to students any Residency requirements pertaining to the student's program of study, including total and any final year or final semester Residency requirement at or before the time the student enrolls in the program.
- b. Provide to students who have previous coursework from other accredited institutions and relevant military training and experiential learning an evaluated educational plan that indicates how many, if any, transfer credits it intends to award and how these will be applied toward the student's Consortium Program Plan. The Partner Institution should make an effort to provide the student with an Evaluated Education Plan within 15 calendar days, but no later than 30 business days, after the student's admission to the Partner Institution in which the individual has selected a degree program and all required official transcripts have been received.
- c. Provide a new Evaluated Education Plan to the student and the USNCC within 15 calendar days, in the event a Service Member changes their educational goal or major (upon USNCC approval) at the Partner Institution.
- d. Agree to review courses that USNCC Consortium Students take at other accredited institutions that form bilateral Consortium. Agreements with USNCC, consistent with the terms of this agreement.

- e. Ensure that degree requirements in effect at the time of each student's enrollment will remain in effect for a period of at least one year beyond the target date of program completion based on the rate for part-time students (equal to one and a half times (150%) the normal period of time for completion), provided the student is in good academic standing and has maintained regular enrollment or received an approved academic leave of absence. Adjustments to degree requirements may be made as a result of formal changes to academic policy pursuant to institutional or departmental determination, provided that:
 - 1. They go into effect at least two years after affected students have been notified; or
 - 2. In the event a teach out plan is required (includes instances when courses or programs are no longer available, institutional closure, or changes have been mandated by a State or accrediting body), the Partner Institution will implement low or no cost solutions and a teach out plan with USNCC to ensure affected students are provided options or alternatives to ensure student continuation and completion of their academic goals
 - 3. Degree requirements and Evaluated Education Plan will meet educational requirements for credentialing in specified career fields and graduates of a program will be eligible for relevant Professional license or certification, where appropriate. Partner Institutions will disclose any conditions (state or agency limitations) or additional requirements (training, experience, or exams) required to obtain relevant credentials.

B. Policies:

- 1. To participate in a Consortium Program, students must be accepted through the USNCC admissions process, be accepted into an approved Consortium Program, and enroll in classes.
 - a. During USNCC's Pre-Candidacy status, students must be accepted and enrolled in a Consortium Program both at the USNCC and at the Partner Institution.
 - b. Consistent with paragraph V, subparagraph C above, during USNCC's Post-Candidacy status, USNCC will become the primary degree grantor for USNCC Consortium Students. Students who were already enrolled in the Consortium Program at the time that USNCC achieves Post-Candidacy status may opt

to continue in the Partner Institution's Consortium Program with the Partner Institution as the primary degree-grantor, or they may transfer to the USNCC-led degree program.

2. Any student enrolled in a Consortium Program through USNCC who loses eligibility for enrollment through USNCC (e.g., separation from military service), but was previously accepted by or admitted to Home Institution prior to loss of USNCC eligibility, shall continue to receive the specified benefits related to the Consortium Program contemplated by this Consortium Agreement in the form of a Transitioning Consortium Student (TCS) Plan, except students shall be solely responsible for payment of all tuition, fees, and materials.
3. Students must comply with USNCC program policies to maintain eligibility and participation in the program through the Consortium Agreement.
4. The policies of the Home Institution govern the policies related to earning and award of a degree as well as to continued enrollment in courses at that institution.
5. USNCC Consortium Students will be required to follow the regulations governing academic integrity and code of conduct at both Home and Teaching Institutions.

VII. Credit Acceptance Agreement.

- A. All USNCC Consortium Students will make progress towards a Naval Studies Certificate. USNCC intends to pursue ACE credit recommendations via an ACE review of these courses during USNCC's Pre-Candidacy status.
 1. USNCC has full authority to update and change their Naval Studies Certificate courses.
 2. As the USNCC makes substantive changes or updates to Naval Studies Certificate courses, modifications will be reflected in a mutually agreed to revision of the Consortium Program(s) and Articulation Agreement(s) in Attachment(s) 1 and 1a (Pre-Candidacy) or 2 and 2a (Post-Candidacy).
 3. USNCC may develop additional courses for credit consideration by the Partner Institution.
 4. Pending ACE review of USNCC-delivered courses, USNCC will provide necessary course information and documentation (e.g., syllabi, course objectives, assignments, course readings and materials) upon request by the Partner Institution to assist the Partner Institution in

evaluating courses for credit equivalencies and the articulation of credit.

- B. Partner Institution should either waive USNCC Consortium Students' Residency requirements or agree that USNCC earned credits partly fulfill the Partner Institution's Residency required credits, and should be treated as fulfilling the Home Institution's Residency requirements. If Residency requirements cannot be waived, they shall require no greater than sixteen semester hour credits (or its equivalent) be earned at the Home Institution.
- C. The Home Institution agrees to articulate USNCC-delivered courses into the student's degree, consistent with the Articulation Agreement (Attachment(s) 1a (Pre-Candidacy) & 2a (Post-Candidacy)), providing the student earns passing grades (C or above). Home Institution will:
 - 1. Award credit for the Naval Studies Certificate as outlined in the Consortium Program Plan(s) and Articulation Agreement(s) at Attachment(s) 1 and 1a (Pre-Candidacy) or 2 and 2a (Post-Candidacy).
 - 2. In furtherance of collaboration under this Consortium Agreement, the Partner Institution shall evaluate the articulation of USNCC-delivered courses and apply the credits first and foremost to the degree program of study identified in Attachment(s) 1. The Home Institution shall apply courses towards General Education and/or Major requirements whenever possible.
- D. The Partner Institution will evaluate and communicate transfer credit in accordance with the following provisions:
 - 1. Provide processes to determine credit awards and learning acquired for specialized military training, occupational experience, and other prior learning assessment when applicable to a Service Member's degree program.
 - 2. Recognize and use the *ACE Guide to the Evaluation of Educational Experiences in the Armed Services* to determine the value of learning acquired in military service. Award credit for military service at levels consistent with ACE Guide recommendations as documented via JST and/or those transcribed by USNCC to a Service Member's Consortium Program Plan where applicable.
 - 3. If the Partner Institution accepts transfer credit from other accredited educational institutions, then the institution agrees to evaluate these credits in conformity with the principles set forth in the Joint Statement on the Transfer and Award of Credit developed by members of the American Association of Collegiate Registrars and Admissions Officers (AACRAO), ACE, and the Council for Higher Education Accreditation (CHEA). The Partner Institution will then award

appropriate credit, to the extent practicable within the framework of its institutional mission and academic policies.

4. The Partner Institution is responsible for decisions about the amount of transfer credit that the Partner Institution will accept and how it will be applied to a student's Consortium Program Plan.
 5. The Partner Institution shall disclose institutional policies on how they award academic credit for prior learning experiences, including military training and experiential learning opportunities provided by the Military Services, at or before a Service Member's enrollment.
 6. Insofar as the Partner Institution's policies generally permit the award of credit for comparable prior learning experiences, the Partner Institution agrees to evaluate the learning experiences documented on the Service Member's official JST, and, where applicable, award credit.
 7. The Partner Institution is responsible for decisions about the amount of experiential learning credit awarded, and how it will be applied to the student's Consortium Program Plan. Once a Partner Institution has evaluated a particular military training or experiential learning opportunity for a given program, the Partner Institution may rely on its prior evaluation to make future decisions provided that the course content has not changed.
 8. As general policy permits, the Partner Institution will award transfer credit or credit for prior learning to:
 - a. Replace a required course within the major.
 - b. Apply as an optional course within the major.
 - c. Apply as a general elective.
 - d. Apply as a basic degree requirement; or
 - e. Waive a prerequisite.
- E. The USNCC and Partner Institution will provide each other with course equivalent information, including updates and course changes, on an ongoing basis.
- F. Additional program-specific articulation agreement(s) may be developed between the Partner Institution and USNCC for students enrolling in specific program(s). These supplemental program articulation agreement(s) will be consistent with the tenets of this overarching Consortium Agreement.

VIII. Assessment and Oversight.

- A. Both parties agree to provide such information and data as needed to satisfy each Institution's accreditation requirements. This information includes, but is not limited to:

1. Assessment of program(s) and course learning for relevant/aligned courses/programs that USNCC Consortium Students take. The Partner Institution will provide course evaluation results to USNCC at the end of each term.
2. Faculty qualifications.
3. Assessment of supplemental learning resources and support services (e.g., library, advising, tutoring, etc.).
4. The Partner Institution agrees to support USNCC in its pursuit of accreditation as appropriate.
5. Other facets of institutional assessment that may be required.

IX. Faculty Selection.

- A. The USNCC and Partner Institution agree that faculty should be academically or professionally qualified, and should have, with limited exception (for highly professionally qualified staff) a graduate-level degree in a related field, or an undergraduate degree plus at least 18 credits in a related field of study. All faculty qualifications must comply with the both Institution's accreditors' standards and be written in both institution's policies. All faculty teaching Consortium Program courses shall be trained or certified to teach online.

X. Admissions Processing.

- A. USNCC has the sole authority to determine whether students are eligible to participate in the program through this Consortium Agreement, as students must be admitted in USNCC to participate prior to applying-to and enrolling-at the Partner Institution.
- B. Admission and academic requirements for specific degree(s) or Professional Certificate(s) are the responsibility of Home Institution and its academic units to determine and administer.
- C. Home Institution will consider USNCC student applications for admission in accordance with standard Home Institution admission evaluation criteria, while favorably recognizing USNCCs' certification of student High School Diploma or Equivalent without requiring a certified copy of the documentation.
- D. Home Institution will allow students at USNCC (who are enlisted Service Members in the Navy, Marine Corps or Coast Guard), without a high school diploma or equivalent to participate in the USNCC certificate and degree program based on ability to benefit or similar standard, consistent with Home Institution policy.

- E. Nothing in this Consortium Agreement alters or amends the admission, academic, or graduation requirements that the Home Institution may establish and amend from time to time.

XI. Future Collaborative Consortium Agreement.

- A. Both parties agree to work in good faith to enter into a joint or collaborative (“Association Consortia”) consortium agreement with all accredited Colleges and Universities working with the USNCC at a future date.
- B. Additional degree(s) and/or Professional Certificate(s) may be developed between the Partner Institution and USNCC for students enrolling in additional Professional Certificate or degree programs. All additional degree(s) or Professional Certificate(s) will be consistent with the tenets of this overarching Consortium agreement and the accompanying Consortium Program Plan(s) and Articulation Agreement(s) will become part of the Attachments as Attachment 1.1, 1.2 etc.; Attachment 1a.1, 1a.2 etc.; Attachment 2.1, 2.2 etc.; Attachment 2a.1, 2a.2 etc.

XII. General Provisions.

- A. This Consortium Agreement shall remain in effect for a period of 7 years.
- B. Each party of this agreement (USNCC and the Partner Institution) agree to notify the other of any adverse changes in its programs, accreditation, or state licensure status.
- C. USNCC and the Partner Institution shall comply under Section 504 of the Rehabilitation Act of 1973, Title VII of the Civil Rights Act of 1964, Title IX of the Education Amendments of 1972 and the Age Discrimination Act of 1975 which prohibit discrimination on the basis of handicap, race, sex, and age, respectively.
- D. USNCC and the Partner Institution agrees to be responsible for any negligent acts or negligent omissions by or through itself or its agents, employees and contracted servants and further agrees to defend itself and themselves and pay any judgments and costs arising out of such negligent acts or negligent omissions, and nothing in this Consortium Agreement shall impute or transfer any such responsibility from one to the other.
- E. Data Exchange. All exchanges of student data that are required by this Consortium Agreement or otherwise necessary for the administration of this Consortium Agreement and exchanges of student data that are pursuant to the Partner Institution’s separate funding contract with USNCC, shall be made in accordance with the requirements of the Family Educational Rights and Privacy Act, 20 U.S.C. §1232g, 34 C.F.R. Part 99, and other applicable privacy laws including without

limitation, the Health Insurance Portability and Accountability Act of 1996 and the federal regulations adopted to implement that Act (45 C.F.R. Parts 160 & 164 “the HIPAA Privacy and Security Rules”), collectively referred to as “HIPAA”, and the Gramm-Leach-Bliley Act, Public Law No: 106-102.

- F. Non-Exclusivity. This Consortium Agreement is not exclusive, and either the USNCC or Partner Institution may enter into similar agreements with any other institution.
- G. Term and Termination.
 - a. Term. This Consortium Agreement shall commence with the Signing Date and shall automatically expire 7 years after the Effective Date unless otherwise terminated as set forth in this Consortium Agreement.
 - b. Termination.
 - 1. Should this Consortium Agreement conflict with the requirements or regulations of a regulatory body of either institution, the other institution will be given notice of the problem, and an opportunity to cure the defect before the termination of the Consortium Agreement. If the defect cannot be cured, the Consortium Agreement will terminate immediately upon notice of inability to cure.
 - 2. USNCC or the Partner Institution may terminate this Consortium Agreement in the event of a material breach by the other institution, effective upon the later date to occur of (i) the end of the current academic semester, or (ii) the date that is 90 days after the notice that includes a description of the breach; provided in either case that the breaching institution shall be allowed, until said effective date, to cure said breach, and if the breach is so cured the termination notice will be of no effect.
 - 3. USNCC or the Partner Institution may terminate this Consortium Agreement at any time for any or no reason, effective one year after providing written notice of its intent to terminate to the other institution.
 - c. Post-Termination. Upon expiration or termination of this Consortium Agreement for any reason, USNCC Consortium Students previously accepted by or admitted to Home Institution shall continue to receive the benefits contemplated by this Consortium Agreement, except students shall be solely responsible for payment of all tuition and fees if they continue to pursue their degree at the Home Institution after the expiration or termination of this Consortium Agreement.

XIII. Miscellaneous.

- A. Severability. If any Section or provision of this Consortium Agreement be held illegal, unenforceable or in conflict with any law by a court of competent jurisdiction, such Section or provision of this Consortium Agreement shall be deemed severed from this Consortium Agreement and the validity of the remainder of this Consortium Agreement shall not be affected thereby.
- B. Governing Law. This Consortium Agreement shall be governed by and construed in accordance with the federal laws applicable to contracts made and to be enforced wholly within federal court.
- C. Notices. All notices or other written communications relating to termination, expiration, or any other legal matter relating to this Consortium Agreement will be effective when received. Such notice must be given in writing by courier or reputable overnight delivery service, or by certified mail, return receipt requested, to USNCC at the following address: 3094 Upshur Ave, Quantico VA 22134 and to the Partner Institution's address below (or by providing a written notice in the manner specified in this Section) with an additional copy addressed to the other institution's "General Counsel."
- D. This Consortium Agreement may be modified or amended only via an addendum signed by USNCC and Partner Institution.
- E. This Consortium Agreement is subject at all times to federal law and the rules, guidelines, and regulations of the Department of Defense. Any conflicts between this agreement and such federal law, rules, guidelines, and regulations will be resolved in favor of the federal law, rules, guidelines, or regulations.
- F. Official communication between USNCC and Partner Institution in reference to this agreement shall occur via email or telephone, unless otherwise noted.
- G. Changes to this agreement shall not be construed so as to modify or affect in any way the terms and conditions of the USNCC Educational Service multiple award IDIQ contracts and task orders.
- H. Signatories. USNCC President, and whomever is in an appropriate position of execution from the Partner Institution.